

24BBCV00120 24BBCV00120

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-17

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Case Number: 24BBCV00120 Hearing Date: July 17, 2026 Dept: A

MOTION TO COMPEL ANSWERS TO DEPOSITION QUESTIONS

Los

Angeles Superior Court Case # 24BBCV00120

MP: Plaintiff

Yofiel Bibi

RP: Defendant Los

Angeles County Metropolitan Transportation Authority

NOTICE:

The Court is not

requesting oral argument on this matter. The Court is guided by

California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear

is requested. Unless the Court directs argument in the Tentative Ruling,

no argument is required and any party seeking argument should notify all other

parties and the court by 4:00 p.m. on the court day before the hearing of the

party's intention to appear and argue. The tentative ruling will become

the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Yofiel Bibi, a minor, by and through his Guardian Ad Litem, Sharon Bibi ("Plaintiff") alleges that on September 11, 2023 at approximately 8:00 p.m., he was riding a non-electric scooter at the Chandler Boulevard and Bellaire Avenue intersection in Valley Village.

As Plaintiff turned left, he was struck by a bus operated by Defendant Los Angeles County Metropolitan Transportation Authority ("LACMTA"). Plaintiff asserts that he submitted government claims with Defendants City of Los Angeles ("City") and County of Los Angeles ("County"), but City and County each denied his claims.

The Complaint, filed January 16, 2024, alleges: (1) Negligence – Motor Vehicle; (2) Negligence (Gov. Code, § 815.2(a)); (3) Negligence – Premises Liability; (4) General Negligence; and (5) Dangerous Condition of Public Property (Gov. Code, § 835). On April 6, 2026, Plaintiff named Woods Maintenance Services, Inc. (Doe 1, "Woods").

B.

Cross-Complaint

On April 17, 2024, City filed a cross-complaint against LACMTA for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On March 27, 2026, LACMTA filed a cross-complaint against Woods for: (1) Indemnification; (2) Apportionment of Fault; (3) Declaratory Relief; and (4) Contractual Defense and Indemnification.

MOTIONS ON CALENDAR:

On April 2, 2026, Plaintiff filed a Motion to Compel Answers to Deposition Questions and to Produce Documents. On July 6, 2026, LACMTA filed an opposition. On July 10, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

C.C.P. § 2025.460(e) states:

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's

control that is specified in the deposition notice or a deposition subpoena, the party seeking that answer or production may adjourn the deposition or complete the examination on other matters without waiving the right at a later time to move for an order compelling that answer or production under Section 2025.480.”

C.C.P.

§ 2025.480 states, “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (C.C.P. § 2025.480(a).) The motion shall be made no later than 60 days after the completion of the deposition record and shall be accompanied by a meet and confer declaration under section 2016.040. (C.C.P. § 2025.480(b).) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition.” (C.C.P. § 2025.480(i).)

ANALYSIS:

Plaintiff

moves for an order: (1) directing LACMTA employee Don McKenzie (LACMTA's transportation manager who investigated the subject collision) to answer deposition questions he was instructed not to answer, and (2) to produce documents that were not provided before or at his deposition.

Mr.

McKenzie's deposition went forward on February 17, 2026. (Mot., Ex. 1 [McKenzie Depo. Transcript].) The court reporter's transcript was completed on February 26, 2026. (Id.) Plaintiff's counsel, Andrew Owen, states that the parties met and conferred prior to Plaintiff filing this motion. (Owen Decl., ¶5, Ex. 3.)

There

are four deposition questions and one request for production at issue.

A.

Deposition Question Nos. 1 and 2 – Mr. McKenzie's
“Avoidability” Determination

Deposition

Question No. 1 was as follows:

Q Okay. And

with respect to Metro's investigation, it determined that this collision was avoidable as to Montoya, correct?

MR. CITRON: I'm

going to object and instruct him not to answer on the basis of Mr. Montoya's privacy.

BY MR. OWEN:

Q Let me ask

the foundational question. Did Metro make a determination as to whether this collision was avoidable as to Montoya?

A Among other

factors, yes.

Q Okay. And

Metro ultimately concluded that, in fact, it was avoidable as to Montoya, correct?

MR. CITRON: I'm

going to object and again instruct him not to answer based on Montoya's privacy.

MR. OWEN: Tom,

you know, I don't think there's any privacy anymore. And if there is an interest, my interest in discovering this information overrides that privacy interest.

MR. CITRON: I

disagree whether an accident is avoidable or not, Metro's investigation would be an invasion of his privacy. It's also probably attorney-client work, privileged.

(McKenzie

Depo. at 74:16-75:14.)

Deposition

Question No. 2 was as follows:

[MR. OWEN] So, Tom, if I ask any questions as to why Metro concluded the collision was avoidable as to Montoya, would you offer a similar objection and instruct the witness not to answer?

MR. CITRON: Yes.

MR. OWEN: Okay. Because I have all these questions about, you know, did Metro use speed to determine the collision was avoidable as to Montoya. If I asked questions like that one and questions similar, would you give the similar instruction?

MR. CITRON: Yes, because you've already covered it. But the way that it's being

phrased is objectionable.

(McKenzie
Depo. at 82:4-16.)

Plaintiffs

argue that because no attorney directed Mr. McKenzie to conduct the investigation, LACMTA's investigation and determination of whether the collision was avoidable were not subject to the attorney work product doctrine or attorney-client privilege. Plaintiffs argue that because Mr. McKenzie, a non-attorney, was performing his regular job duties, using operational data (SmartDrive video, GPS Swiftly data, Safe 3 Report, and IR Report), his avoidability determination existed independently of any litigation.

At

his deposition, Mr. McKenzie testified that regardless of whether there would be a potential lawsuit, bus drivers like Montoya were required to create accident/incident reports within 24 hours.

(McKenzie Depo. at pp.76-78.)

When asked if he needed a lawyer to tell the employee to complete the form or whether a lawyer came up to him after the Montoya incident to have

Montoya fill out a form, LACMTA's counsel, Mr. Citron, objected that if county counsel sets up protocols and instructs LACMTA to follow certain rules, then the matter are subject to the attorney-client privilege and work product. (Id. at pp.79-81.)

The

mere lack of counsel's presence at the time Montoya filled out the incident report or when Mr. McKenzie made his avoidability determination, does not automatically preclude them from being subject to the attorney-client privilege and/or attorney work product doctrine.

However, other than the objections raised at the deposition, LACMTA has not provided further information on the applicability of the privileges. While Mr. Citron objected at the deposition that "if" county counsel set up protocols and instructions to LACMTA employees, then the matters would be subject to privilege.

(See McKenzie Depo. at p81:14-20.)

However, no declarations from County Counsel or anyone else were provided to support this claim. The

Court can perceive of multiple reasons this form and report may be created, not all of which go to lawsuits.

While

Mr. Citron provides his declaration and identifies himself as LACMTA's counsel of record in this action, he does not state he was the MTA's counsel when creating the procedure and thus would have direct knowledge or that he/county counsel instructed Montoya, Mr. McKenzie, or other LACMTA employees to fill out forms post-incident and conduct investigations in anticipation of litigation. There is no declaration from county counsel regarding LACMTA's post-incident procedures and whether they were to be conducted in anticipation of litigation. (The Court notes too that based on the line of questioning and Mr. McKenzie's responses at his deposition regarding a lawyer's presence does not give a complete representation of counsel's involvement, or lack thereof, for the applicability of the attorney-client privilege or work product doctrine.)

Based

on the arguments and limited evidence before it, the Court overrules the attorney-client privilege and attorney work product objections.

Furthermore,

the Court does not find that Mr. McKenzie avoidability determination violates Mr. Montoya's privacy rights. LACMTA

argues that this determination concerns an internal employment and disciplinary review of Montoya's on-duty conduct.

LACMTA acknowledges that the Court previously ordered production of certain disciplinary records but argues that this does not mean that Plaintiffs are entitled to every internal conclusion/determination concerning Montoya. (Opp. Separate Statement at pp.4-5.) The information sought does not relate to Montoya's personal information but seeks further disciplinary records.

The
motion as to Deposition Question Nos. 1 and 2 are granted.

B.
Deposition Question Nos. 3 and 4 – Mr. McKenzie's Interview
with Montoya

Deposition
Question No. 3 was as follows:

[Q by Mr. Owen] So other than
being in shock, what generally do you recall Mr. Montoya communicating to you
in response to your questions about the accident?

MR. CITRON: I'm going to object
and instruct him not to answer on the attorney-client privilege and work
product doctrine basis.

BY MR. OWEN

Q And I take it you'll follow
Mr. Citron's instruction?

A Yes.

(McKenzie
Depo. at 140:13-23.)

Deposition
Question No. 4 was as follows:

[Q] So, Tom, any questions that I have of this gentleman and Mr. Montoya during the initial interview about the crash, you would assert the attorney work product

objections to?

MR. CITRON: And attorney-client, correct.

MR. OWEN: Okay. And instruct him not to answer, correct?

MR. CITRON: Correct.

(McKenzie Depo. at 142:17-24.)

Similar

to the above, Plaintiff argues that because Mr. McKenzie conducted his interview with Montoya on a routine basis without counsel's presence or direction, the interview did not constitute attorney-client privileged communications. LACMTA argues that "the substance of Mr. McKenzie's initial post-accident interview of Mr. Montoya ... was part of Metro's post-incident investigation, risk-management process, employment/disciplinary review, and litigation preparation following a serious collision involving a minor. Metro's counsel properly instructed Mr. McKenzie not to answer to preserve the attorney-client privilege, the attorney work-product doctrine, and Mr. Montoya's privacy rights." (Opp. Separate Statement at p.8.)

However,

the same concerns apply as discussed above.

Without any insight on LACMTA's pre-litigation practices or county counsel's instructions, etc., the Court is only left with LACMTA's arguments without evidentiary support. In theory, the Court agrees that if Mr. McKenzie was instructed by counsel to conduct the interview for pre/litigation purposes, then the communications may be privileged. At this stage, without more, the burden has not been met to show the privilege applies.

As

such, the motion is granted as to Deposition Question Nos. 3-4.

C.

RPD No. 39

RPD

No. 39 seeks:

“All reports RELATING TO the SUBJECT COLLISION, including accident reports, incident reports, and traffic collision reports.”

LACMTA

objected that the RPD was vague and ambiguous, and overly broad and burdensome; sought information protected by the attorney-client privilege and attorney work product doctrine; and was equally available to the propounding party. LACMTA responded without waiving objections: “After a diligent search and having made a reasonable inquiry, Defendant states that it has no nonprivileged responsive documents other than the traffic crash report, which is equally available to Plaintiff.” (Pl.’s Separate Statement at p.7.)

Specifically,

Plaintiff argues that the Safe 3 incident report is not protected by the work product doctrine or attorney-client privilege because Montoya (a non-attorney) completed the report as a routine operational obligation, independent of any litigation. Plaintiff argues that because

Mr. McKenzie testified that the findings from the incident reports were used for training purposes (though the incident reports themselves were not used for this purpose), this shows that the data was broadly presented at meetings and thereby not privileged. (McKenzie Depo. at p.76.)

LACMTA

argues that the reports themselves were not used for training purposes and that even if the findings are later used for training/accident prevention purposes, this does not override the dominate purpose for their creation in the first place—i.e., in anticipation of litigation.

The

Safe 3 report was objected to as privileged.

Given the findings of the report were shared for training purposes, the

reports appear to have a concurrent purpose.

However, there is no declaration from MTA as to what those concurrent purposes are or how and why the Safe 3 reports are created. With the sharing of conclusions for training purposes, a priori, certain contents of the report are likewise disclosable. As discussed above, the

Court lacks supporting evidence from LACMTA that the Safe 3 incident report was created solely in anticipation of litigation.

As such, the Court grants the motion as to RPD No. 39 but, may redact portions not otherwise disclosed in the findings which are shared for training purposes; in addition, in order to protect the confidentiality of the document, LACMTA may produce the document pursuant to the parties' Protective Order.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Yofiel Bibi's Motion

to Compel Answers to Deposition Questions and to Produce Documents came on regularly for hearing on July 17, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

MOTION TO COMPEL don mckenzie's ANSWERS to deposition questions and to produce documents is granted as to deposition question nos. 1-4 and GRANTED IN PART AS TO RPD NO. 39 AS REDACTED. THE PARTIES ARE ORDERED TO MEET AND CONFER TO DETERMINE A MUTUALLY AGREEABLE DEPOSITION DATE FOR MR. MCKENZIE'S FURTHER DEPOSITION TO BE SCHEDULED PREFERABLY WITHIN 30 DAYS OF THIS ORDER. DOCUMENTS SHALL BE PRODUCED AT LEAST FIVE DAYS BEFORE THE SCHEDULED DEPOSITION.

PLAINTIFF TO PROVIDE NOTICE.

IT

IS SO ORDERED.